

**CERTIFICATE OF INTERESTED PERSONS AND CORPORATE
DISCLOSURE STATEMENT**

Pursuant to Federal Rule of Appellate Procedure 26.1 and Eleventh Circuit Rule 26.1-1, Respondent Securities and Exchange Commission states that the following listed persons and entities have an interest in the outcome of this case:

- 1) Alternative Investment Management Association, Amicus.
- 2) Altman, Jennifer G., Pillsbury Winthrop Shaw Pittman LLP, counsel for NYSE Intervenors.
- 3) American Free Enterprise Chamber of Commerce, Amicus.
- 4) American Securities Association, Petitioner.
- 5) ArentFox Schiff LLP, counsel for Intervenors Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc.
- 6) Ashbrook Byrne Kresge LLC, counsel for Amici James Overdahl and S.P. Kothari.
- 7) Baltz, Brian J., counsel for Amicus Future Industry Association.
- 8) Barbero, Megan, counsel for Respondent Securities and Exchange Commission.
- 9) Barr, William P., counsel for amicus American Free Enterprise Chamber of Commerce.
- 10) Bash, John F., counsel for amici Senator Tom Cotton et al.
- 11) Berman, Ari M., Pillsbury Winthrop Shaw Pittman LLP, counsel for NYSE Intervenors.
- 12) Berry, Jonathan, counsel for amicus American Free Enterprise Chamber of Commerce.
- 13) Bird, Brenna, counsel for Amicus State of Iowa.

- 14) Blask, Ariel, counsel for Amicus Future Industry Association.
- 15) Boden, Anastasia, counsel for Amici Cato Institute and Investor Choice Advocates Network.
- 16) Borse Dubai Limited, owner of more than 10% of Nasdaq, Inc.'s shares.
- 17) BOX Exchange LLC, member and participant of Intervenor CAT LLC.
- 18) Boyle, Gregory, Jenner & Block LLP, counsel for Intervenor Consolidated Audit Trail, LLC.
- 19) Boyden Gray PLLC, counsel for Amicus American Free Enterprise Chamber of Commerce.
- 20) Bronni, Nicholas J., counsel for Amicus State of Arkansas.
- 21) Cato Institute, Amicus.
- 22) Carr, Chris, counsel for Amicus State of Georgia.
- 23) Cboe BYX Exchange, Inc., Intervenor and member and participant of Intervenor CAT LLC.
- 24) Cboe BZX Exchange, Inc., Intervenor and member and participant of CAT LLC.
- 25) Cboe C2 Exchange, Inc., Intervenor and member and participant of CAT LLC.
- 26) Cboe EDGA Exchange, Inc., Intervenor and member and participant of CAT LLC.
- 27) Cboe EDGX Exchange, Inc., Intervenor and member and participant of CAT LLC.
- 28) Cboe Exchange, Inc., Intervenor and member and participant of CAT LLC.
- 29) Cboe Global Markets, Inc. (BATS: CBOE), direct or indirect parent company of Intervenor Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc.

- 30) Chenoweth, Markham S., counsel for Amicus New Civil Liberties Alliance.
- 31) Citadel Securities GP LLC, parent company of Petitioner Citadel Securities LLC.
- 32) Citadel Securities LLC, Petitioner.
- 33) Coleman, Russell, counsel for Amicus Commonwealth of Kentucky.
- 34) Committee on Capital Markets Regulation, Amicus.
- 35) Commonwealth of Kentucky, Amicus.
- 36) Commonwealth of Virginia, Amicus.
- 37) Competitive Enterprise Institute, Amicus.
- 38) Conley, Michael A., counsel for Respondent Securities and Exchange Commission.
- 39) Connolly, J. Michael, Consovoy McCarthy PLLC, counsel for Petitioner American Securities Association.
- 40) Consolidated Audit Trail, LLC, Intervenor, a jointly owned limited liability company formed under Delaware state law through which the participants conduct the activities of the CAT NMS Plan.
- 41) Deutsch, Elizabeth, Jenner & Block LLP, counsel for Intervenor Consolidated Audit Trail, LLC.
- 42) Financial Industry Regulatory Authority, Inc., member and participant of Intervenor CAT LLC.
- 43) Fitch, Lynn, counsel for Amicus State of Mississippi.
- 44) Formela, John M., counsel for Amicus State of New Hampshire.
- 45) Francisco, Noel J., Jones Day, counsel for Petitioner Citadel Securities LLC.
- 46) Hardin, Tracey A., counsel for Respondent Securities and Exchange Commission.
- 47) Hilgers, Michael T., counsel for Amicus State of Nebraska.

- 48) Hopen, David A., Paul, Weiss, Rifkin, Wharton & Garrison LLP, counsel for Amici Securities Industry and Financial Markets Association et al.
- 49) Hoyt, Joshua T., Jones Day, counsel for Petitioner Citadel Securities LLC.
- 50) Flowers, Benjamin M., Ashbrook Byrne Kresge LLC, counsel for Amici James Overdahl and S.P. Kothari.
- 51) Future Industry Association, Amicus.
- 52) Gershengorn, Ian Heath, Jenner & Block LLP, counsel for Intervenor Consolidated Audit Trail, LLC.
- 53) Greenberg, Dan, counsel for Amicus Competitive Enterprise Institute.
- 54) Greenwalt, Paul, III, counsel for Intervenor Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc.
- 55) Griffin, Tim, counsel for Amicus State of Arkansas.
- 56) Intercontinental Exchange, Inc. (NYSE: ICE), indirect parent of NYSE Intervenor.
- 57) International Securities Exchange Holdings, Inc., sole LLC member of Intervenor Nasdaq GEMX LLC, Nasdaq ISE LLC, and Nasdaq MRX LLC.
- 58) Investment Company Institute, Amicus.
- 59) Investor AB (Nasdaq Stockholm: INVEB), owner of more than 10% of Nasdaq, Inc.'s shares.
- 60) Investor Choice Advocates Network, Amicus.
- 61) Investors' Exchange, LLC, member and participant of Intervenor CAT LLC.
- 62) Jackley, Marty, counsel for Amicus South Dakota.
- 63) Jacobs, Dylan L., counsel for Amicus State of Arkansas.

- 64) Jenner & Block LLP, counsel for Intervenor Consolidated Audit Trail, LLC.
- 65) Kastenbergs, Stephen J., Ballard Spahr LLP, counsel for Intervenor The Nasdaq Stock Market LLC, Nasdaq BX, Inc., Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, and Nasdaq PHLX LLC.
- 66) Katsiff, Timothy D., Ballard Spahr LLP, counsel for Intervenor The Nasdaq Stock Market LLC, Nasdaq BX, Inc., Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, and Nasdaq PHLX LLC.
- 67) Kennedy, Jordan A., counsel for Respondent Securities and Exchange Commission.
- 68) Knudsen, Austin, counsel for Amicus State of Montana.
- 69) Kobach, Kris W., counsel for Amicus State of Kansas.
- 70) Kothari, S.P., Amicus.
- 71) Kumar, Neal, counsel for Amicus Future Industry Association.
- 72) Labrador, Raúl R., counsel for Amicus State of Idaho.
- 73) Lantieri, Paul, Ballard Spahr LLP, counsel for Intervenor The Nasdaq Stock Market LLC, Nasdaq BX, Inc., Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, and Nasdaq PHLX LLC.
- 74) Little, Margaret A., counsel for Amicus New Civil Liberties Alliance.
- 75) Lipshutz, Brian M., Paul, Weiss, Rifkin, Wharton & Garrison LLP, counsel for Amici Securities Industry and Financial Markets Association et al.
- 76) Long-Term Stock Exchange, Inc., member and participant of Intervenor CAT LLC.
- 77) Lucas, Brinton, Jones Day, counsel for Petitioner Citadel Securities LLC.
- 78) MacLean, Matthew J., Pillsbury Winthrop Shaw Pittman LLP, counsel for NYSE Intervenor.
- 79) Managed Funds Association, Amicus.

- 80) Marshall, Jonathan J., Jenner & Block LLP, counsel for Intervenor Consolidated Audit Trail, LLC.
- 81) Marshall, Steve, counsel for Amicus State of Alabama.
- 82) Matro, Daniel E., counsel for Respondent Securities and Exchange Commission.
- 83) MEMX LLC, member and participant of Intervenor CAT LLC.
- 84) Miami International Securities Exchange LLC, member and participant of Intervenor CAT LLC.
- 85) MIAX Emerald, LLC, member and participant of Intervenor CAT LLC.
- 86) MIAX PEARL, LLC, member and participant of Intervenor CAT LLC.
- 87) Michel, Christopher G., Quinn Emanuel Urquhart & Sullivan, LLP, counsel for amici Senator Tom Cotton et al.
- 88) Miyares, Jason, counsel for Amicus Commonwealth of Virginia.
- 89) Modern Markets Initiative, Inc., sponsor of funding disclosed pursuant to Rule 29(a)(4)(E) of the Federal Rules of Appellate Procedure.
- 90) Molzberger, Michael, ArentFox Schiff LLP, counsel for Intervenor Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc.
- 91) Montgomery, Sophia W., Jenner & Block LLP, counsel for Intervenor Consolidated Audit Trail, LLC.
- 92) Moody, Ashley, counsel for Amicus State of Florida.
- 93) Morris, Andrew J., counsel for Amicus New Civil Liberties Alliance.
- 94) Morrissey, Patrick, counsel for Amicus State of West Virginia.
- 95) Murrill, Liz, counsel for Amicus State of Louisiana.
- 96) Nabors, David A., Quinn Emanuel Urquhart & Sullivan, LLP, counsel for amici Senator Tom Cotton et al.
- 97) Nasdaq BX, Inc., Intervenor.

- 98) Nasdaq GEMX, LLC, Intervenor.
- 99) Nasdaq, Inc. (Nasdaq: NDAQ), sole owner of LLC interest in The Nasdaq Stock Market LLC and Nasdaq PHLX LLC and parent company of Nasdaq BX, Inc.
- 100) Nasdaq ISE, LLC, Intervenor.
- 101) Nasdaq MRX, LLC, Intervenor.
- 102) Nasdaq PHLX LLC, Intervenor.
- 103) New Civil Liberties Alliance, Amicus.
- 104) New York Stock Exchange LLC, Intervenor.
- 105) NYSE American LLC, Intervenor.
- 106) NYSE Arca, Inc., Intervenor.
- 107) NYSE Chicago, Inc., Intervenor.
- 108) NYSE National, Inc., Intervenor.
- 109) Oliwenstein, David, Pillsbury Winthrop Shaw Pittman LLP, counsel for NYSE Intervenor.
- 110) Orr, Caleb, Boyden Gray PLLC, counsel for Amicus American Free Enterprise Chamber of Commerce.
- 111) Overdahl, James, Amicus.
- 112) Paul, Weiss, Rifkin, Wharton & Garrison LLP, counsel for Amici Securities Industry and Financial Markets Association et al.
- 113) Paxton, Ken, counsel for Amicus State of Texas.
- 114) Phillips, David, Jones Day, counsel for Petitioner Citadel Securities LLC.
- 115) Quinn Emanuel Urquhart & Sullivan, LLP, counsel for Amici Senator Tom Cotton et al.
- 116) Rabbitt, Brian C., Jones Day, counsel for Petitioner Citadel Securities LLC.

- 117) Reisner, Lorin L., Paul, Weiss, Rifkin, Wharton & Garrison LLP, counsel for Amici Securities Industry and Financial Markets Association et al.
- 118) Representatives Mark Alford, Don Bacon, Michael Collins, Scott Fitzgerald, French Hill, Barry Loudermilk, Alex X. Mooney, Ralph Norman, John Rose, Keith Self, Randy Weber, and Steve Womack, Amici.
- 119) Reyes, Sean, counsel for Amicus State of Utah.
- 120) Rokita, Theodore E., counsel for Amicus State of Indiana.
- 121) Roth, Yaakov M., Jones Day, counsel for Petitioner Citadel Securities LLC.
- 122) Schulp, Jennifer, counsel for Amici Cato Institute and Investor Choice Advocates Network.
- 123) Schwartz, Yishai, Paul, Weiss, Rifkin, Wharton & Garrison LLP, counsel for Amici Securities Industry and Financial Markets Association et al.
- 124) Securities Industry and Financial Markets Association, Amicus.
- 125) Senator Tom Cotton, John Boozman, Mike Braun, Kevin Cramer, Steve Daines, Bill Hagerty, John Kennedy, Jerry Moran, Pete Ricketts, and Tim Scott, Amici.
- 126) Shanmugam, Kannon K., Paul, Weiss, Rifkin, Wharton & Garrison LLP, counsel for Amici Securities Industry and Financial Markets Association et al.
- 127) Skorup, Brent, counsel for Amici Cato Institute and Investor Choice Advocates Network.
- 128) Sobel, Zachary J., counsel for Amici Senator Tom Cotton et al.
- 129) State of Alabama, Amicus.
- 130) State of Arkansas, Amicus.
- 131) State of Florida, Amicus.
- 132) State of Georgia, Amicus.

- 133) State of Indiana, Amicus.
- 134) State of Iowa, Amicus.
- 135) State of Kansas, Amicus.
- 136) State of Louisiana, Amicus.
- 137) State of Mississippi, Amicus.
- 138) State of Missouri, Amicus.
- 139) State of Montana, Amicus.
- 140) State of Nebraska, Amicus.
- 141) State of New Hampshire, Amicus.
- 142) State of North Dakota, Amicus.
- 143) State of Ohio, Amicus.
- 144) State of South Carolina, Amicus.
- 145) State of South Dakota, Amicus.
- 146) State of Texas, Amicus.
- 147) State of Utah, Amicus.
- 148) State of West Virginia, Amicus.
- 149) The Nasdaq Stock Market LLC, Intervenor.
- 150) The Vanguard Group, Inc., owned 10% or more of Cboe Global Markets, Inc.'s common stock as of June 30, 2023.
- 151) Thoma Bravo UGP, LLC, owner of more than 10% of Nasdaq, Inc.'s shares.
- 152) Torridon Law PLLC, counsel for Amicus American Free Enterprise Chamber of Commerce.
- 153) Unikowsky, Adam, Jenner & Block LLP, counsel for Intervenor Consolidated Audit Trail, LLC.

- 154) United States Securities and Exchange Commission, Respondent.
- 155) Virtu Financial, Inc., Amicus.
- 156) Watkins, Devin, counsel for Amicus Competitive Enterprise Institute.
- 157) Wilson, Alan, counsel for Amicus State of South Carolina.
- 158) Wrigley, Drew H., counsel for Amicus State of North Dakota.
- 159) Yost, Dave, counsel for Amicus State of Ohio.



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July 12, 2024

David J. Smith, Clerk of Court
United States Court of Appeals for the Eleventh Circuit
56 Forsyth St., N.W.
Atlanta, GA 30303

Re: *Am. Secs. Ass'n et al. v. SEC* (No. 23-13396)

Dear Mr. Smith:

Loper Bright Enterprises v. Raimondo, No. 22-451 (U.S. June 28, 2024) does not salvage petitioners' argument that the Commission lacked authority to adopt Rule 613 in 2012.

First, the Court need not address *Loper Bright* because petitioners' authority challenge is time-barred. Petitioners' sole defense is that the order under review "re-applies" Rule 613 to them, restarting the sixty-day statutory clock. Reply Br. 4 (quoting *Consumers' Rsch. v. FCC*, 88 F.4th 917, 922 (11th Cir. 2023)). But *Consumers' Research* is plainly inapposite. The agency order in that case obligated the challengers to pay a percentage of their revenue upon receiving invoices that would be sent by a private administrator without any further agency involvement or review. See 88 F.4th at 921-23; see also *Consumers' Rsch. v. FCC*, 67 F.4th 773, 786 (6th Cir. 2023). The order here merely amends the general framework for allocating CAT costs; no payment obligation arises unless and until the Commission approves (or declines to suspend) subsequent SRO fee filings. Nothing in *Consumers' Research* (or any other case) suggests that an agency "re-applies" a rule whenever it amends the rule.

In any event, *Loper Bright* is irrelevant because the Commission did not rely on or ask for *Chevron* deference. The statutory text, history, and purposes confirm the Commission's authority to require that the SROs consolidate their audit trails—as Commissioners and market participants unanimously agreed when Rule 613 was adopted and for years thereafter. SEC Br. 44-51.

Nor does the cursory dicta petitioners cite endorse their radical view that an agency necessarily contravenes Congress's intent when using a broad grant of

authority to address a matter of economic or political significance. *See* SEC Br. 52-53 (addressing additional major questions factors). On the contrary, *Loper Bright* affirms that “[w]hen the best reading of a statute is that it delegates discretionary authority to an agency”—including through broad “term[s] or phrase[s] . . . such as ‘appropriate’ or ‘reasonable’”—the reviewing court’s role is simply to interpret “the boundaries of the delegated authority” and “ensur[e] the agency has engaged in reasoned decisionmaking within those boundaries.” Op. 17-18 (cleaned up).

Respectfully submitted,

Tracey A. Hardin
Assistant General Counsel

/s/ Daniel E. Matro
Daniel E. Matro
Senior Appellate Counsel

Counsel for Respondent
Securities and Exchange Commission

cc: All Counsel Via CM/ECF